

THE IMERMAN DEVICES

Due Process, Evidential Integrity, Financial Prejudice and the Right to an Effective Remedy

OPEN CORRESPONDENCE · 15 SEPTEMBER 2026

The Rt Hon the Prime Minister

10 Downing Street

London SW1A 2AA

15 September 2026

Dear Prime Minister,

The central issue is exceptionally serious. The criminal relevance of the financial and cryptocurrency material was known during the proceedings: it was raised in written evidence, submissions and oral evidence and addressed during the hearing. The documentary record also establishes repeated subsequent notification of the criminal relevance of the devices, including to the court-appointed crypto Single Joint Expert, who expressly referred to the risk of jeopardising an ongoing criminal investigation.

Two digital devices entered the court-connected evidential process for review, yet they were never forensically examined and cannot presently be accounted for on the reconstructed custody record. If those devices cannot now be located, secured and shown to have been preserved intact, the implications extend beyond defective evidence handling. The circumstances raise serious questions of due process and potential official misconduct and require investigation of whether any conduct concerning the preservation, custody or disappearance of the evidence could amount to misconduct in public office, obstruction of justice or another criminal offence. I do not prejudge those questions. I require them to be investigated.

This is not an isolated matter. The Imerman devices are one discrete and independently verifiable evidential failure within the wider matter of judicial integrity and due process arising from these proceedings. Construction of the Primary Evidential Record is now under way. That record will preserve and reconstruct the underlying evidence, provenance, submissions, transcripts, decisions and institutional responses necessary to test material findings and decisions against the evidence from which they are said to arise. The Imerman devices are addressed first because the issue is immediate, concrete and capable of independent verification. Their resolution is necessary, but it will not resolve the wider questions of judicial integrity and due process now under independent reconstruction.

NOTE ON THE CRIMINAL REFERRALS. The criminal referrals and supporting investigative materials referred to in this correspondence are submissions to Sir Mark Rowley, Commissioner of the Metropolitan Police, for investigation and assessment by the competent law-enforcement authorities. Their transmission or publication as part of the evidentiary record does not represent findings by the Metropolitan Police or any other public authority. They are preserved and identified as submissions so that their

provenance, contents, supporting evidence and subsequent institutional handling remain capable of independent verification.

Why I am writing openly to the Prime Minister's Office

I am writing openly to the Prime Minister's Office because, after more than two years of proceedings, I have not obtained an effective process by which the evidential and procedural failures I have raised can be independently examined and, where established, remedied. Instead, the process has become recursive: concerns about the integrity of the underlying proceedings are repeatedly returned to, or determined through, the same institutional structures whose acts, omissions or recorded conclusions are themselves in question. I no longer regard that as an effective accountability mechanism.

I have therefore decided to externalise the evidentiary record. The Primary Evidential Record now under construction will support a methodical, systematic and meticulous forensic reconstruction in which every material decision, finding and, where necessary, paragraph of the recorded judicial narrative is tested against the primary evidence from which it is said to arise. I do not presently consider the decisions produced by the courts in my case to be safe; some continue, in my position, to cause serious and accumulating harm. Each material decision will therefore be subjected to independent legal assessment against the reconstructed record and, subject to applicable legal restrictions, the resulting analyses and assessments will be published openly. I will maintain open correspondence with the Prime Minister's Office throughout that process.

The Ubuntu material

The materiality of the missing devices is no longer hypothetical. Hard-copy material recovered from the Ubuntu computer was reviewed in December 2023 by a cryptocurrency specialist. The review identified matters of significant importance to the financial proceedings, including a post-2019 Bitcoin wallet containing Lightning and on-chain balances; ViaBTC mining activity requiring explanation; evidence of Bitfinex registration; transaction activity involving an unresolved Binance deposit address; and a private key which the specialist considered evidence of control of a Multibit Classic wallet. His subsequent formal disclosure analysis stated that the corresponding post-2019 Bitcoin wallet and its addresses had not been disclosed and that the existence of other Bitcoin wallets could not be identified, determined or dismissed without rectification of the disclosure deficiencies. The surviving hard copies therefore demonstrate precisely why preservation and forensic examination of the original Ubuntu computer mattered.

Financial significance and avoidable harm

The financial significance can be illustrated without speculation. The surviving material records identifiable cryptocurrency quantities, including a Coinbase portfolio containing 36.92765255 BTC and 75.41329163 ETH, together with BCH and BSV positions, 29,873.06 USDT, a ViaBTC balance subsequently acknowledged as 0.16 BTC, and the smaller post-2019 Lightning/on-chain balance. The indicative market value of those recorded positions on 15 September 2026 was approximately US\$3.1 million. This is not advanced as

a finding that every position was undisclosed or represented recoverable loss. Its significance is narrower and more fundamental: the surviving hard-copy record demonstrates that the unexamined device contained financially material evidence.

My resulting financial prejudice was avoidable. Potentially material digital evidence entered an evidential process for review; the review was not completed; the devices were not forensically examined; and the opportunity to preserve and test their underlying digital evidence was therefore lost to the determination of the financial case. The subsequent cryptocurrency review demonstrates the importance of what survived in hard copy. Had the original devices been safeguarded, imaged and examined when they were available, the underlying wallets, accounts, metadata and transaction histories could have been preserved and investigated before consequential findings and financial liabilities were imposed.

Evidence, impunity and equality before the law

The integrity of the justice system depends upon preserving the evidence by which serious allegations can be investigated and consequential findings can be tested. When potentially material evidence disappears from the evidential process, the damage is structural: what cannot be preserved cannot reliably be examined; what cannot be examined cannot properly be tested; and conduct that cannot effectively be investigated risks escaping accountability altogether.

That produces the fundamental equality issue in this case: **no evidence → no effective investigation or testing → risk of impunity**. I remain subject to substantial enforceable consequences while potentially material evidence capable of testing another person's financial conduct was never forensically examined and cannot presently be accounted for. Equality before the law cannot mean rigorous enforcement of consequences against one person while failures affecting potentially material evidence concerning another produce no equivalent accountability. **If that asymmetry is permitted to persist, people are not equal under the law.**

Due process, prejudice and effective remedy

The relevant loss is not simply two computers. It is the loss of an evidential opportunity: preservation, forensic examination, disclosure, challenge, testing and determination of potentially material evidence. The correct counterfactual is straightforward: what evidential and procedural position would I have occupied had the devices been safeguarded, examined and dealt with through the process for which they were surrendered? The difference between that position and the position in which I now find myself is the prejudice that must be independently established, quantified and remedied.

Continuing consequences

There are continuing consequences while that examination is under way. Litigation funding obtained to pay for representation in the underlying proceedings became repayable on their conclusion, and is the subject of live proceedings in the Chancery

Division, Detach Lending Limited v Zahmoul, BL-2024-001217, in which default judgment for £1,008,848.42 was entered on 31 March 2025. I do not consider it safe for those proceedings to progress further against me while the integrity of the process that produced the liability is itself under independent examination. My position is that no further substantive step should be taken in them until that review is complete and its conclusions are capable of scrutiny.

This repeats the position formally notified to your office on 7 September 2026. **I am demanding my right to know where the evidence is and to obtain a substantive determination of what happened to it on the public record.** More broadly, I oppose the continuation or enforcement against me of consequential court decisions while the integrity of the evidential process from which those consequences arose remains unresolved. Before further substantive consequences are imposed, the evidential record must be addressed transparently and openly and the whereabouts, custody and integrity of the digital devices established. **A judicial process that cannot account for potentially material evidence entrusted to it, or demonstrate that due process and the law were followed in dealing with that evidence, cannot safely continue to impose consequences arising from the process whose integrity is in question.**

What must now happen

The remedy is practical. The devices must be located and secured; their complete chain of custody reconstructed; their forensic condition and evidential integrity established; the circumstances in which they ceased to be held by the last recorded custodian investigated; the underlying criminal matters investigated by the competent authorities; and the resulting prejudice independently assessed and quantified. That process must lead to an effective remedy.

How can extraordinary financial consequences continue to be enforced while potentially material digital evidence placed into a court-connected evidential process was never forensically examined, surviving material subsequently demonstrated its significance, and the original devices themselves cannot presently be accounted for?

If any institution contends that substantive enforcement may nevertheless continue, I require it to identify the legal and evidential basis upon which consequences of this magnitude can properly continue to be imposed while the whereabouts, integrity and custody of potentially material evidence remain unresolved.

The law either applies equally to everyone, or it does not.

I am asking the responsible institutions to establish what happened, identify accountability where the evidence supports it, determine and quantify the prejudice caused, and provide an effective remedy.

Please begin that process.

Yours sincerely,

Nadia Zahmoul